STRIKE SECURITY (PRIVATE) LIMITED
versus
GRACE MUTANDIRO

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 20 November 2025 and 15 June 2026

Opposed Matter

A Masango, for the applicant
N Munetsi, for the respondent

TAKUVA J: This is a chamber application for condonation and extension of time within which to note an appeal. The applicant seeks the following order:

1. The Application for condonation and extension of time within which to note an appeal be and is hereby granted.
2. Applicant be and is hereby allowed to file his appeal against the judgement under C-CD445/24 within 10 days of the date of issue of this order.
3. There be no order as to costs.

Background Facts

The Applicant, through its director, seeks condonation for the late noting of an appeal and an extension of time within which to prosecute an appeal following the dismissal of the appeal on 27 September 2024 for failure to file heads of argument. The original appeal had been noted against a magistrates' court judgment awarding damages to the Respondent arising from a lease dispute.

The Applicant attributes its non-compliance to a combination of administrative and technical issues. It avers that after noting the appeal, its legal practitioner identified errors in the record of proceedings and anticipated that these would be corrected before further steps were taken. However, the record was transmitted to the High Court without such corrections. The Applicant further contends that its legal practitioner did not receive notification, via the

Integrated Electronic Case Management System (IECMS), of the requirement to file heads of argument or of the subsequent dismissal of the appeal. The dismissal only came to the Applicant's attention upon receipt of a writ of execution in November 2024. The present application was thereafter instituted, the delay being approximately two months. The Applicant maintains that the delay is not inordinate, the explanation is reasonable, and that it has prospects of success on appeal, particularly in relation to the assessment of damages.

The Respondent opposes the application, raising preliminary objections. She contends that the procedure adopted by the Applicant is incorrect, arguing that where an appeal has been dismissed for want of prosecution, the proper remedy is an application for reinstatement rather than condonation. On that basis alone, she submits that the application is fatally defective.

Further, the Respondent challenges the adequacy of the Applicant's explanation for the default. She argues that the Applicant has failed to provide confirmatory affidavits from the Clerk of Court or the High Court IT department, despite attributing blame to these offices. In her view, the explanation is unsupported, constitutes hearsay, and fails to meet the threshold required for condonation. She also points to documentary evidence indicating that the Applicant's legal practitioner inspected and certified the record as complete, thereby undermining the claim that the record was defective.

On the merits, the Respondent denies that the Applicant has prospects of success on appeal. She maintains that the trial court's award of damages was based on a proper evaluation of the evidence, including receipts, quotations, and photographic proof of damage. She further contends that the Applicant admitted liability for the damage and failed to rebut the evidence led at trial. The Respondent also asserts that she has suffered prejudice due to the Applicant's failure to satisfy the judgment debt and the continued delay in finalising the matter.

In sum, the dispute before the court concerns whether the Applicant has provided a satisfactory explanation for its failure to comply with the rules, whether the procedure adopted is competent, and whether sufficient prospects of success exist to justify the grant of condonation.

Preliminary Points

The parties raised several preliminary objections which I deal with sequentially.

(a) Alleged Bar of the Respondent

The Applicant submitted that the Respondent is barred for failure to serve the Notice of Opposition in terms of Rule 59(8) of the High Court Rules, 2021. This contention is unsustainable. Service was effected through the IECMS in terms of Statutory Instrument 81 of 2024, which recognises electronic service and deems proof of transmission as *prima facie* proof of service. The system status reflecting "pending answering affidavit" further confirms that the Registrar acknowledged proper filing and service.

More importantly, the Applicant filed an answering affidavit and heads of argument thereafter. That conduct constitutes clear evidence of receipt and negates any suggestion of non-service. The point is devoid of merit and is dismissed.

(b) Failure to Attach Confirmatory Affidavits

The Respondent argues that the Applicant's explanation is fatally defective for failure to attach affidavits from the Clerk of Court and the High Court IT department, whom it blames for the default.

It is correct, as stated in *Diocese of Harare* v *Church of the Province of Central Africa* S-9-10, that where blame is placed on an officer of the court, confirmatory affidavits ought to be filed to avoid hearsay.

However, the absence of such affidavits does not, without more, render the application a nullity. It impacts the credibility and sufficiency of the explanation for non-compliance, which is a matter for consideration when exercising the court's discretion on condonation. This point is therefore not dispositive and is not upheld at this stage.

(c) Improper Procedure: Reinstatement vs Condonation

The Respondent's main objection is that the application is procedurally incompetent, the Applicant having sought condonation instead of reinstatement of the dismissed appeal. It is common cause that the Applicant's appeal was dismissed for failure to file heads of argument and was consequently deemed abandoned.

The legal consequence of such dismissal is that the appeal ceases to exist as a pending matter. The proper remedy in those circumstances is reinstatement. This position is supported by *Khanyisa Minerals (Pvt) Ltd* v *Crowburg Resources (Pvt) Ltd & Ors* HH-425-23, where the court recognised reinstatement as the appropriate recourse for matters dismissed for want

of prosecution. Practice Direction 1 of 2025 has since clarified the position by expressly providing for reinstatement upon good cause shown. The court in *Khanyisa Minerals (Pvt) Ltd* (*supra*) stated that:

> "If the applicant whose application has been dismissed for want of prosecution desires to have the matter again placed before the court, the applicant must apply to reinstate the matter. Neither r 236 in the 1971 High Court Rules nor r 59 (15) of the current rules 2021 dealt with the remedy open to the applicant whose case has been dismissed for want of prosecution in terms of the rule."

Further, in *Vanledge Investments (Pvt) Ltd* v *Chemical Procurement Services Africa (Pvt) Ltd* S-5-24, the Supreme Court emphasised that once a matter is deemed dismissed, it cannot be revived outside the mechanism specifically designed for that purpose.

The Applicant's approach; seeking to initiate a fresh appeal through condonation does not revive the dismissed proceedings but instead attempts to bypass their legal consequences. That is impermissible. Condonation is not a substitute for reinstatement where a matter has already been dismissed for want of prosecution. The defect is not merely technical; it goes to the competence of the proceedings before the court. This point is dispositive. Once upheld, it is unnecessary to consider the merits.

Conclusion

The preliminary objection on improper procedure is dispositive of the matter. The Applicant approached this court by way of condonation and extension of time to note an appeal, notwithstanding that an appeal had already been properly noted and subsequently dismissed for want of prosecution, with the result that it ceased to exist as a pending matter. In those circumstances, the only competent remedy available was an application for reinstatement upon good cause shown, and not the institution of what is effectively a fresh appeal under the guise of condonation. The procedure adopted by the Applicant is therefore fundamentally defective, as it seeks to circumvent the legal consequences of the dismissal and is not sanctioned by the rules or established practice. This defect goes to the competence of the proceedings and is not a mere technicality capable of cure. Accordingly, the application cannot be entertained, and there is no basis to proceed to consider the merits.

It is accordingly ordered that:

1. The application is hereby struck off the roll for being improperly before the court.

2. The Applicant shall pay costs on an ordinary scale.

TAKUVA J: ……

Muronda Malinga Masango legal practice, applicant's legal practitioners
Wilmot & Bennett, respondent's legal practitioners